

HOUSE No. 2437

The Commonwealth of Massachusetts

PRESENTED BY:

Carlos González

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to eliminate discrimination of incarcerated persons' participation in life saving programs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carlos González</i>	<i>10th Hampden</i>	<i>1/17/2025</i>

HOUSE No. 2437

By Representative González of Springfield, a petition (accompanied by bill, House, No. 2437) of Carlos González relative to incarcerated persons and organ transplantation. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to eliminate discrimination of incarcerated persons' participation in life saving programs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (a) of section 236 of chapter 111 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by inserting after the word “gift.” in
3 line 21, the following words: including, but not limited to incarcerated persons of 18 years of
4 age.

5 SECTION 2. Said section 236 of said chapter 111, as so appearing, is amended by
6 inserting after the word “care” in line 143, the following words: The Department of Corrections
7 shall provide a caregiver at the covered entity or correctional facility to provide all necessary
8 aftercare and continuing care pursuant to this section as if the location were a residence.

9 SECTION 3. Said section 236 of Chapter 111, as so appearing, is hereby amended by
10 adding the following subsection at line 213:-(g) Pursuant to the nondiscriminatory requirements
11 of this section, the Department of Corrections shall promulgate procedures to allow persons
12 incarcerated in the Commonwealth to become a living organ donor, receive an organ transplant,

13 become a bone marrow donor or receive a bone marrow transplant, including but not limited to ,
14 protocol for an emergency donation in support of a family member in need. Any inmate wishing
15 to make a living organ donation or receive an organ transplant may notify the person(s) in charge
16 of the facility where they are in residence by written notice, and the Department of Corrections
17 representative in charge of such residence and inmate will refer the matter to outside medical
18 review within three days of receipt of such request.